

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

WAYNE MYERS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity;
Police Officer MICHAEL BARBETTO (Shield No.
6815); and Sergeant LOUIS DEPERGOLA (Shield
No. 1249), all of whom are sued individually and in
their official capacities,

Defendants.

X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Bronx
County as place of trial.

The basis of venue is the location of
the unlawful acts

X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
April 29, 2019

BELDOCK LEVINE & HOFFMAN LLP

By: 

Marc Cannan

99 Park Avenue, PH/26th Fl.

New York, New York 10016

(212) 490-0400

Attorneys for Plaintiffs

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Officer Michael Barbetto (Shield No. 6815)
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

Sgt. Louis Depergola (Shield No. 1249)
Midtown South Precinct
357 W. 35th Street
New York, NY 10001

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COUNTY OF BRONX**

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THE CITY OF NEW YORK, a municipal entity;
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VERIFIED COMPLAINT

**JURY TRIAL
DEMANDED**

Index No.:

Plaintiff Wayne Myers, by his attorneys, Beldock Levine & Hoffman LLP, as and for his
complaint against the Defendants named above alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff Wayne Myers ("Mr. Myers" or
"Plaintiff"), seeks relief for Defendants' violations of his rights secured by 42 U.S.C. § 1983, the
Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution and
laws of the State of New York.

2. Plaintiff seeks redress for the substantial injuries he suffered when the defendant
police officers unlawfully caused him to be detained, arrested, and maliciously prosecuted. Mr.
Myers was conversing with a friend in a car parked in a private driveway at a barbecue he was
attending when the defendant police officers, without any suspicion of illegal activity, seized and
searched him. When the defendant police officers did not find any evidence of criminal activity
on Mr. Myers, they falsely charged him with operating a motor vehicle while intoxicated and

other violations of New York Vehicle and Traffic Law. A jury found Mr. Myers innocent of those false charges after a trial that was held in December of 2016.

3. Plaintiff seeks (i) compensatory damages for loss of liberty, psychological and emotional distress, and other injuries caused by the illegal actions of the defendant Police Officers; (ii) punitive damages to deter such intentional and/or reckless deviations from well-settled constitutional law; and (iii) such other and further relief, including costs and attorney's fees, as this Court deems equitable and just.

JURISDICTION

4. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights secured by the Fourth and Fourteenth Amendments to the United States Constitution; and for violations of Plaintiff's rights under Article 1 §§ 1, 6, and 12 of the New York State Constitution.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. This Court is Pursuant to CPLR 503 and 504, venue is proper in the Bronx because it is the county where the events giving rise to this action took place.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action on each and every one of his claims.

PARTIES

8. Mr. Myers, a citizen of the United States, was at all times relevant to this complaint a resident of Bronx County, City and State of New York.

9. Defendant City of New York (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and does maintain the New York City Police Department (“NYPD”) which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. Defendant police officers Michael Barbetto (“P.O. Barbetto”) and Louis Depergola (“P.O. Depergola”) are NYPD Police Officers who unlawfully seized, searched, and arrested Mr. Myers without suspicion of any illegal activity and lodged false criminal charges against him.

11. Upon information and belief, Defendants P.O. Barbetto and P.O. Depergola are still NYPD Police Officers.

12. At all times relevant herein, , Defendants P.O. Barbetto and P.O. Depergola acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

13. At all times relevant herein, Defendants P.O. Barbetto and P.O. Depergola violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution and laws of the State of New York of which reasonable police officers in their circumstances would have known.

ADMINISTRATIVE PROCEEDINGS

14. Plaintiff served his Notice of Claim upon the City of New York electronically, using the eClaim system on the New York City Comptroller's website on March 18, 2016, within ninety days of the events giving rise to Plaintiff's claims.

15. Plaintiff attended a hearing pursuant to section 50-h of the New York General Municipal Law on July 24, 2018.

16. More than thirty days have elapsed since Plaintiff served his Notice of Claim and the City has not offered adjustment or payment thereof.

17. This action is filed within three years of the events giving rise to Plaintiff's New York State constitutional claims.

STATEMENT OF FACTS

18. In the early morning hours of September 27, 2014, Mr. Myers was attending a back-yard barbecue that was being held in the back-yard of a private house in the Bronx, New York.

19. Also attending the barbecue was a friend of Mr. Myers named Chris Cochrane.

20. During the barbecue, Mr. Myers and Mr. Cochrane entered into a conversation about a possible construction job.

21. Because the noise from the barbecue made it difficult for Mr. Myers and Mr. Cochrane to converse, they left the back-yard and went to a car belonging to Mr. Myers' fiancé that was parked in the driveway of the home where the barbecue was being held.

22. Mr. Myers and Mr. Cochrane got in the car belonging to Mr. Myers' fiancé and continued their discussion.

23. While Mr. Myers and Mr. Cochrane were talking, the engine of the car was not running.

24. While Mr. Myers and Mr. Cochrane were talking, the key to start the car was not in the car's ignition.

25. Neither Mr. Myers or Mr. Cochrane put a key inside the car's ignition or attempted to start the car.

26. While Mr. Myers and Cochrane talked inside the car, they were approached by NYPD police officers, including Defendants P.O. Barbetto and P.O. Depergola.

27. The police officers did not have probable cause or reasonable suspicion to believe that Mr. Myers or Mr. Cochrane were engaged in criminal activity or had committed any crime or offense.

28. The police officers ordered Mr. Myers and Mr. Cochrane to exit the car.

29. As Mr. Myers started to get out of the car, police officers grabbed him and pulled him out of the car.

30. The police officers placed Mr. Myers in handcuffs.

31. The police officers searched Mr. Myers.

32. The police officers did not find any evidence of criminal activity on Mr. Myers' person or in Mr. Myers' possession as a result of their search.

33. The police officers requested Mr. Myers take a sobriety test by blowing into a portable breathalyzer.

34. Mr. Myers complied with the police officers' request and blew into the portable breathalyzer.

35. Mr. Myers had been in police custody for less than five minutes when he blew into the portable breathalyzer.

36. After he had blown into the breathalyzer, Mr. Myers heard a police officer report that the test had come up “zero.”

37. The police officers placed Mr. Myers in a patrol car and transported him to the 45th Precinct.

38. Mr. Myers was processed at the 45th Precinct and then transported to the 47th Precinct where he was further processed.

39. Mr. Myers was eventually transported to Bronx County Central Booking where he was further processed.

40. In connection with Mr. Myers’ arrest, Defendants P.O. Barbetto and P.O. Depergola prepared false and misleading arrest paperwork which they forwarded to an Assistant District Attorney at the Bronx County District Attorney’s office.

41. The false and misleading paperwork that P.O. Barbetto and P.O. Depergola prepared and forwarded to the Bronx County District Attorney’s office contained knowingly false statements to incriminate Mr. Myers, including, *inter alia*, statements that the police officers had observed Mr. Myers driving a car, that the car Mr. Myers’ was allegedly driving had an “obstructed view” due to objects hanging from the rearview mirror, and that Mr. Myers had a strong odor of alcohol on his breath and was visibly intoxicated.

42. As a result of the false and misleading paperwork prepared by Defendants P.O. Barbetto and P.O. Depergola, the Bronx County District Attorney’s Office decided to prosecute Mr. Myers.

43. Mr. Myers was arraigned in Bronx County Criminal Court on or about the evening of September 28, 2014.

44. At his arraignment, Mr. Myers was charged with criminally operating a motor vehicle while intoxicated and other violations of New York Vehicle and Traffic Law in a complaint that was sworn to by Defendant P.O. Barbetto.

45. The criminal court complaint charging Mr. Myers was based on the false and misleading information that Defendants P.O. Barbetto and P.O. Depergola had provided to the Bronx County District Attorney's office.

46. The criminal court complaint charging Mr. Myers contained knowingly false statements, including false the statements that Defendant P.O. Barbetto had observed Mr. Myers operating a car on a public street while the car was moving and the car engine was running and that Mr. Myers had bloodshot, watery eyes, a strong odor of alcoholic beverage emanating from his breath, and was swaying on his feet.

47. Because of the false statements contained in the criminal court complaint, bail was set at an amount Mr. Myers could not afford and Mr. Myers was remanded into the custody of the New York City Department of Correctional Services.

48. Approximately six days later, Mr. Myers was taken back to the Bronx County Criminal Court where he appeared before a judge.

49. At that appearance, Mr. Myers was released on his own recognizance.

50. Over the next two years, Mr. Myers was required to return to the Bronx County Criminal Court numerous times as a result of the false charges Defendants P.O. Barbetto and P.O. Depergola had lodged against him.

51. A criminal trial was held regarding the false charges lodged against Mr. Myers in December 2016.

52. At Mr. Myers' criminal trial, Defendants P.O. Barbetto and P.O. Depergola gave false testimony, including false statements that they had observed Mr. Myers driving a car on a public road before stopping him.

53. The jury acquitted Mr. Myers of all of the criminal charges against him.

DAMAGES

54. The unlawful intentional, willful, deliberately indifferent, reckless, and/or bad faith acts and omissions of the City and Police Officer Defendants unlawfully violated Mr. Myers' Fourth and Fourteenth Amendment rights and his rights under the Constitution and laws of the State of New York.

55. As a direct result of Defendants' intentional, bad faith, willful, wanton, reckless, and/or deliberately indifferent acts and omissions, Plaintiff sustained injuries and damages, which continue to date and will continue into the future, including: severe mental anguish; emotional distress; severe psychological damage; and humiliation, indignities and embarrassment, for which Plaintiff is entitled to monetary relief.

56. All the acts and omissions committed by the Defendants described herein for which liability is claimed were done intentionally, unlawfully, maliciously, wantonly, recklessly, negligently and/or with bad faith, and said acts meet all of the standards for imposition of punitive damages.

FIRST CAUSE OF ACTION
42 U.S.C. § 1983 – Violations of Fourth and Fourteenth Amendment Rights
(Individual Defendants)

57. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

58. In committing the acts and omissions complained of herein, Defendants acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent;
- b. the right to be free from the lodging of false criminal charges against him by police officers;
- c. the right to be free from malicious prosecution by police officers, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in Plaintiff's favor;
- d. freedom from the denial of a fair trial by the presentation of fabricated evidence; and
- e. the right to be free from deprivation of liberty without due process of law.

59. As a direct and proximate result of defendants Defendants P.O. Barbetto and P.O. Depergola deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

60. The unlawful conduct of Defendants P.O. Barbetto and P.O. Depergola was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
Violations of the New York State Constitution

61. Plaintiff realleges and incorporates by reference each-and-every allegation set forth in the foregoing paragraphs as if fully set forth herein.

62. Defendants subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of rights, privileges, and immunities guaranteed by Article 1, §§ 1, 6, and 12 of the New York State Constitution, including, without limitation, the following:

- a. Plaintiff was deprived of his rights and privileges guaranteed by Article 1, § 1 of the New York State Constitution;
- b. Plaintiff was deprived of his right to due process guaranteed by Article 1, § 6 of the New York State Constitution; and
- c. Plaintiff was deprived of his right to be free from unreasonable searches and seizures guaranteed by Article 1, § 12 of the New York State Constitution.

63. As a direct and proximate result of Defendants P.O. Barbetto's and P.O. Depergola's deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

64. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

THIRD CAUSE OF ACTION
(Respondeat Superior)

65. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

66. At all relevant times, Defendants P.O. Barbetto and P.O. Depergola were employees of the City and were acting within the scope of their employment.

67. The City is therefore vicariously liable under the common law doctrine of *respondeat superior* for the actions of Defendants P.O. Barbetto and P.O. Depergola set forth herein.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from defendants P.O. Barbetto and P.O. Depergola to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
April 29, 2019

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, Suite 2600
New York, New York 10016
(212) 490-0400

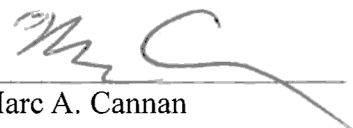
/s/Marc A. Cannan
Marc A. Cannan
Attorneys for Plaintiff Wayne Meyers

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

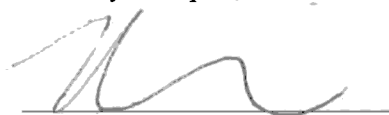
I, Marc A. Cannan, being duly sworn, state:

I am the attorney for the Plaintiff in this action. The foregoing Complaint is true to my knowledge except as to those matters therein stated on information and belief and as to those matters I believe them to be true. Pursuant to CPLR § 3020(d)(3), the verification is not made by Plaintiff Wayne Myers because he is not in the county where I have my office.



Marc A. Cannan

Sworn to before me this
29th day of April, 2019.



Notary Public

KEITH MICHAEL SZCZEPANSKI
Notary Public, State of New York
No. 02SZ6325315
Qualified in Kings County
Commission Expires May 26, 2019